

An Act

ENROLLED SENATE
BILL NO. 1224

By: Jech of the Senate

and

Duel of the House

An Act relating to pardons and paroles; amending 57 O.S. 2021, Section 332.2, as amended by Section 1, Chapter 198, O.S.L. 2022 (57 O.S. Supp. 2025, Section 332.2), which relates to pardon and parole procedures; authorizing electronic notification to victims and victim representatives; updating statutory language; and providing an effective date.

SUBJECT: Pardon and parole procedures

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 57 O.S. 2021, Section 332.2, as amended by Section 1, Chapter 198, O.S.L. 2022 (57 O.S. Supp. 2025, Section 332.2), is amended to read as follows:

Section 332.2. A. The Pardon and Parole Board, which shall meet only on the call of the ~~Chair~~ chair, is authorized, if and when an application made to the Governor for a reprieve, commutation, parole, pardon, or other act of clemency is certified thereto by the Governor, to examine into the merits of ~~said~~ the application and make recommendations to the Governor in relation thereto, ~~said~~ such recommendation being advisory to the Governor and not binding thereon.

B. Any consideration for commutation shall be made only after application is made to the Pardon and Parole Board pursuant to the procedures set forth in this section. The Pardon and Parole Board shall provide a copy of the application to the district attorney, the victim or representative of the victim, and the Office of the

Attorney General within ten (10) business days of receipt of such application.

C. An application for commutation, other than those provided for in subsection F of this section, must be sent to the trial officials, who shall have twenty (20) business days to provide a written recommendation or protest prior to consideration of the application. Trial officials shall include:

1. The current elected judge of the court where the conviction was had;

2. The current elected district attorney of the jurisdiction where the conviction was had; or

3. The chief or head administrative officer of the arresting law enforcement agency.

D. In cases resolved prior to the tenure of the present officeholders, the recommendation or protest of persons holding such offices at the time of conviction may also be considered by the Board.

E. The recommendation for commutation of a sentence by a trial official may include the following:

1. A statement that the penalty now appears to be excessive;

2. A recommendation of a definite term now considered by the official as just and proper; and

3. A statement of the reasons for the recommendation based upon facts directly related to the case which were not available to the court or jury at the time of the trial or based upon there having been a statutory change in penalty for the crime which makes the original penalty appear excessive.

F. The Pardon and Parole Board shall establish an accelerated, single-stage commutation docket for any applicant who has been convicted of a crime that has been reclassified from a felony to a misdemeanor under Oklahoma law. The Pardon and Parole Board shall be empowered to recommend to the Governor for commutation, by

majority vote, any commutation application placed on the accelerated, single-stage commutation docket that meets the eligibility criteria provided above. The Department of Corrections shall certify a list of potentially eligible inmates to the Pardon and Parole Board ~~within thirty (30) days of the effective date of this act~~ no later than December 1, 2019.

G. The Pardon and Parole Board shall schedule the application on a commutation docket in compliance with the notice requirements set forth herein. The Board shall provide the victim or representative of the victim at least twenty (20) days to offer recommendations or protests before consideration of the application.

H. Applications for commutation shall be given impartial review as required in Section 10 of Article VI of the Oklahoma Constitution.

I. Any consideration for pardon shall be made only after application is made to the Pardon and Parole Board. Upon receipt of an application for pardon, the Board shall provide a copy of the application to the district attorney, the victim or representative of the victim, and the Office of the Attorney General within twenty (20) business days of receipt of such application. The district attorney and the victim or representative of the victim shall have twenty (20) business days to provide written recommendation or protest prior to the consideration of the application. The Board shall schedule the application on a pardon docket in compliance with the notice requirements set forth herein.

J. In accordance with Section 10 of Article VI of the Oklahoma Constitution, the Board shall communicate to the Legislature, at each regular session, by providing a summary of the activities of the Board. This summary shall include, but not be limited to, the following Board activity:

1. The approval or recommendation rates of the Board for both violent and nonviolent offenses;

2. The parole approval rates for each individual Board member for both violent and nonviolent offenses; and

3. The percentage of public comments to and personal appearances before the Board including victim protests and personal appearances, district attorney protests and personal appearances, and delegate recommendations and personal appearances on behalf of the offender.

This summary shall be made available to the public through publication on the website of the Pardon and Parole Board.

K. The Pardon and Parole Board shall provide a copy of their regular docket and administrative parole docket to each district attorney in this state at least twenty (20) days before such docket is considered by the Board, or in the case of a supplemental, addendum, or special docket, at least ten (10) days before such docket is considered by the Board, and shall notify the district attorney of any recommendations for commutations or paroles no later than twenty (20) days after the docket is considered by the Board.

L. The Pardon and Parole Board shall notify ~~all victims~~ any victim or representatives of the victim in writing at least twenty (20) days before an inmate is considered by the Board provided the Board has received a request from the victim or representatives of the victim for notice. The Board shall provide ~~all victims~~ any victim or representatives of the victim with the date, time, and place of the scheduled meeting and rules for attendance and providing information or input to the Board regarding the inmate or the crime. If requested by the victim or representatives of the victim, the Board shall allow the victim or representatives of the victim to testify at the parole hearing of the inmate for at least five (5) minutes.

M. The Pardon and Parole Board shall notify all victims or representatives of the victim in writing of the decision of the Board no later than twenty (20) days after the inmate is considered by the Board.

N. Any notice required to be provided to the victims or the representatives of the victim shall be mailed by first-class mail to the last-known address of the victim or representatives of the victim or shall be sent by email to the last-known email address of the victim or representatives of the victim if the victim or representatives of the victim have provided an email address to the

Pardon and Parole Board. It is the responsibility of the victims or representatives of the victim to provide the Pardon and Parole Board a current mailing address or email address. The victim-witness coordinator of the district attorney shall assist the victims or representatives of the victim with supplying their address or email address to the Board if they wish to be notified. Upon failure of the Pardon and Parole Board to notify a victim who has requested notification and has provided a current mailing address or email address, the final decision of the Board may be voidable, provided, the victim who failed to receive notification requests a reconsideration hearing within thirty (30) days of the recommendation by the Board for parole. The Pardon and Parole Board may reconsider previous action and may rescind a recommendation if deemed appropriate as determined by the Board.

O. For purposes of this section, "victim" shall mean ~~all persons~~ any person who ~~have~~ has suffered direct or threatened physical or emotional harm, or financial loss as the result of the commission or attempted commission of criminally injurious conduct, and "representatives of the victim" shall mean those persons who are members of the immediate family of the victim, including stepparents, stepbrothers, stepsisters, and stepchildren.

P. All meetings of the Pardon and Parole Board shall comply with Section 301 et seq. of Title 25 of the Oklahoma Statutes, ~~and~~ provided that the Board shall have the authority to limit the number of persons attending in support of, or in opposition to, any inmate being considered for parole and shall have the authority to exclude persons from attendance in accordance with prison security regulations and the capacity of the meeting room. Persons excluded from attending the meeting under this provision shall be informed of their right to be informed of the vote of the Board in accordance with Section 312 of Title 25 of the Oklahoma Statutes. Provided further, nothing in this section shall be construed to prevent any member of the press or any public official from attending any meeting of the Pardon and Parole Board, except as provided by the Oklahoma Open Meeting Act.

Q. All victim information maintained by the Department of Corrections and the Pardon and Parole Board shall be confidential and shall not be released.

R. When a commutation is granted or denied, the Secretary of State shall give notice of that fact to the district attorney and clerk of the court in the county where the sentence was originally obtained within thirty (30) business days. ~~Said~~ Such notice may be given by either first-class mail or email. Upon receipt of ~~said~~ such notice, the clerk of the court shall file the notice. The district attorney shall confirm that the clerk of the court has filed ~~said~~ the notice. The notice shall include the following information:

1. The month and year in which the commutation was recommended by the Pardon and Parole Board;

2. The decision of the Governor to grant or deny commutation; and

3. If commutation is granted, the new term of sentence, including conditions thereof, if any, for each charged count.

S. The district attorney in the district where the sentence was originally obtained shall ensure that all victims or representatives of the victim are given notice of the decision regarding commutation.

SECTION 2. This act shall become effective November 1, 2026.

Passed the Senate the 14th day of May, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____